

A

**M E A S U R E**

PASSED BY

**The National Assembly of the Church of England**

To establish a system of quarterly payments of income payable by Queen Anne's Bounty to incumbents of benefices, and to provide for the transfer to the Ecclesiastical Commissioners of funds held by Queen Anne's Bounty for the benefit of ecclesiastical corporations, and for purposes connected therewith.

[18th February 1937.]

**DEFINITIONS.**

**1. In this Measure—**

- (i) the expression "beneficiary" means and includes the incumbent and other the person or persons for the time being entitled to receive the emoluments of a benefice;
- (ii) the expression "benefice" has the meaning assigned to it by the Tithe Act, 1936; and
- (iii) the expression "ecclesiastical corporation" has the meaning assigned to it by the Episcopal and Capitular Estates Act, 1851.

Interpreta-  
tion.

26 Geo. 5. &  
1 Edw. 8.  
c. 43.

14 & 15 Vict.  
c. 104.

**QUARTERLY PAYMENTS TO INCUMBENTS.**

**2.—(1)** Where any net income is payable by Queen Anne's Bounty to a beneficiary this Measure shall apply to such net income and to the benefice in respect of which the same is payable, and Queen Anne's Bounty shall put into operation in respect of such net income the system of quarterly payments established by this Measure.

Measure to  
affect net  
income  
payable  
by Queen  
Anne's  
Bounty.

(2) For the purposes of this Measure net income shall, in respect of every benefice to which this Measure applies, mean the yearly total, estimated in accordance with the provisions of this Measure, of any dividends, interest or other periodical payments in the nature of income derived from all or any of the sources specified in Part I of the Schedule hereto, less the deductions specified in Part II of the said Schedule to which such income or any part thereof is liable: Provided that this Measure shall not apply to moneys in respect of arrears of tithe rent-charge paid or payable to Queen Anne's Bounty by the Tithe Redemption Commission, or to moneys standing to the credit of a benefice in the Tithe Revenue Account of Queen Anne's Bounty by virtue of the Tithe (Administration of Trusts) Measure, 1928, or to moneys, stocks or securities held by Queen Anne's Bounty on discretionary trusts or on special trusts other than trusts solely for the augmentation of the benefice.

Quarterly  
payments to  
be made in  
respect of  
net income.

3.—(1) Subject to the provisions of this Measure, net income shall be paid in four equal quarterly payments on the first days of January, April, July and October in every year, but so that the first quarterly payment shall be made on the first day of July, one thousand nine hundred and thirty-seven.

(2) For the purposes of this Measure, the net income of a benefice shall be the net income accruing for the period commencing on the first day of April in any year and ending on the thirty-first day of March in the following year (hereinafter called "the current year").

Inaugura-  
tion of  
system of  
quarterly  
payments.

4. In order to inaugurate the system of quarterly payments established by this Measure Queen Anne's Bounty shall forthwith, in the case of every benefice to which this Measure applies, pay to the beneficiary such part of the net income (estimated so far as circumstances permit in accordance with the method prescribed by this Measure) as shall have accrued up to and including the thirty-first day of March, one thousand nine hundred and thirty-seven, including income so accrued and payable on or before the first day of April, one thousand nine hundred and thirty-seven.

Ascertain-  
ment and  
annual

5.—(1) Immediately upon the coming into operation of this Measure Queen Anne's Bounty shall estimate, in the manner prescribed by this Measure, the net income

of every benefice to which this Measure applies and shall in the case of every such benefice, and not less than twenty-one clear days before the first day of July, one thousand nine hundred and thirty-seven, notify the beneficiary of the amount of such estimate and of the quarterly payments based thereon. review of quarterly payments.

(2) Every such estimate shall be reviewed by Queen Anne's Bounty annually on or before the first day of April in respect of the year then next ensuing, and shall be revised so far as may be necessary; and notification of any alteration in the estimate and of the consequential alterations in the quarterly payments to be made for that year shall be given as provided in the foregoing subsection.

6.—(1) In addition to the yearly revisions prescribed by this Measure, Queen Anne's Bounty may revise generally, and at any period in the year as circumstances may require, any estimate made by Queen Anne's Bounty under this Measure, and may adjust any over-payment or under-payment by making such deductions from or additions to any quarterly payment to the beneficiary who has received the over-payment or under-payment as Queen Anne's Bounty may think necessary. Revision and adjustment of quarterly payments.

(2) In any case where by reason of the avoidance of a benefice or for any other reason such over-payments or under-payments cannot be fully adjusted under the foregoing provisions of this section, the balance due to Queen Anne's Bounty or to the beneficiary, as the case may be, shall be recoverable as a debt from the beneficiary or his estate, or from Queen Anne's Bounty, as the case may be.

(3) In any case where such a balance as aforesaid is due to Queen Anne's Bounty, and any moneys are payable by Queen Anne's Bounty to the beneficiary from whom the balance is due, Queen Anne's Bounty may, to such extent as may be required, retain such moneys and apply the same in satisfaction of the said balance.

7. In order to meet the cost incurred by Queen Anne's Bounty in paying income in advance of receipt resulting from the application of the system of quarterly payments pursuant to this Measure, Queen Anne's Bounty shall have power, in the case of every benefice Deductions in respect of cost of system of quarterly payments.

the net annual value of which, computed in accordance with the method adopted by Queen Anne's Bounty for ascertaining the eligibility of a benefice for a grant out of the surplus revenue of Queen Anne's Bounty, exceeds three hundred and fifty pounds, to deduct from each quarterly payment a sum not exceeding one-half of one per cent. of the amount of such quarterly payment.

Deduction  
of expenses  
incurred  
under the  
Tithe Act,  
1936, section  
five.

8. Queen Anne's Bounty shall be entitled to deduct from the money or stock appropriated to a benefice or ecclesiastical corporation under the provisions of the Third Schedule to the Tithe Act, 1936, all expenses and charges incurred by them in connection with the preparation and transmission of the particulars required under section five of the Tithe Act, 1936, including surveyors' charges, in respect of such benefice or ecclesiastical corporation.

Determina-  
tion of  
questions.

9. Without prejudice to any other remedy a beneficiary shall be entitled to require that any question which may arise in connection with the application of this Measure to his benefice shall be determined by the Appeal Committee appointed under section six of the Tithe (Administration of Trusts) Measure, 1928.

#### TRANSFER TO THE ECCLESIASTICAL COMMISSIONERS OF ECCLESIASTICAL CORPORATION FUNDS.

Transfer to  
Ecclesi-  
astical Com-  
missioners  
by Queen  
Anne's  
Bounty  
of moneys,  
stocks or  
securities  
received  
on behalf  
of ecclesi-  
astical cor-  
porations in  
compensa-  
tion for  
tithe rent-  
charge.

10.—(1) It shall be lawful for Queen Anne's Bounty at any time after the passing of this Measure at the request of the Ecclesiastical Commissioners (hereinafter called the Commissioners) to transfer to them the whole or any part of any moneys, stocks or securities for the time being held by Queen Anne's Bounty on behalf of any ecclesiastical corporation pursuant to the Tithe Acts, 1925 and 1936, including the whole or any part of any moneys estimated by Queen Anne's Bounty to be apportionable to such corporation out of the amount or amounts issued to Queen Anne's Bounty under paragraph (g) of subsection (4) of section twenty-five of the Tithe Act, 1936, and of any interest thereon received or allowed by Queen Anne's Bounty.

(2) Any moneys, stocks or securities so transferred shall be held by the Commissioners for the benefit of the

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ecclesiastical corporation for which the moneys, stocks or securities would have been held by Queen Anne's Bounty if the same had not been so transferred to the Commissioners, and in relation thereto the Commissioners shall have the same powers of investment or re-investment as they have in respect of any fund the income of which is carried to their Common Fund.

Powers of Commissioners in relation thereto.

11. At the request of the ecclesiastical corporation concerned the Commissioners shall have power out of any moneys, stocks or securities transferred to them by Queen Anne's Bounty for such ecclesiastical corporation under section ten, subsection (1) of this Measure or out of the income therefrom to make to any person or persons entitled on the second day of October, one thousand nine hundred and thirty-six, to receive the emoluments of, or to receive emoluments as a member or members of, an ecclesiastical corporation payment of such amounts as to the Commissioners shall seem fit in respect of any decrease occasioned by the Tithe Act, 1936, in his or their receipts in respect of those emoluments, so long as such person or persons remain entitled to receive those emoluments.

Power to compensate existing life interests.

12. The Commissioners shall have in respect of the moneys, stocks or securities transferred to them the power of adjustment conferred on Queen Anne's Bounty under paragraph seven of the Eighth Schedule to the Tithe Act, 1936, in respect of ecclesiastical corporations.

Power of adjustment.

#### GENERAL.

13. This Measure shall come into operation on the first day of April, one thousand nine hundred and thirty-seven.

Commencement.

14. This Measure shall extend to the whole of the Provinces of Canterbury and York (except the Channel Islands and the Isle of Man).

Extent.

15. This measure may be cited as the Queen Anne's Bounty (Powers) Measure, 1937.

Short title.

Section 2.

SCHEDULE.

PART I.

SOURCES OF INCOME.

1. Moneys or securities now or hereafter appropriated by Queen Anne's Bounty or held by them in trust solely for the augmentation of the benefice.

2. Annual sums payable by Queen Anne's Bounty and charged in favour of the benefice upon the revenues of another benefice or any part thereof.

3. Property of any other kind vested in Queen Anne's Bounty in trust for the benefice, including corn rents, rent-charges and money payments in lieu of tithe not extinguished by the Tithe Act, 1936, and Tithe Redemption Annuities arising under the Tithe Act, 1918.

PART II.

DEDUCTIONS.

1. Instalments of principal moneys and interest payable to Queen Anne's Bounty under any mortgage or charge made under—

- 17 Geo. 3.  
c. 53.      (a) the Clergy Residences Repair Act, 1776, and the Acts extending or amending the same;
- 55 & 56 Vict.  
c. 57.      (b) the Ecclesiastical Dilapidations Measures, 1923 to 1929;
- (c) the Private Street Works Act, 1892;
- (d) the Agricultural Holdings Acts or any of them.

2. Deductions which, under the Ecclesiastical Dilapidations Measure, 1923, the Clergy Pensions Measure, 1926, the Clergy Pensions (Older Incumbents) Measure, 1930, the Tithe Acts, 1925 and 1936, and any amendment thereof respectively, or under any other Statute or Measure or any Order of His Majesty in Council, are authorised or required to be made from moneys payable by Queen Anne's Bounty.

3. Moneys advanced to or paid on behalf of a beneficiary by Queen Anne's Bounty.

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